

#	Case Name	Tentative
57.	Flores v. Hyundai Motor America 2023-01343056	Plaintiff Sidney Flores' motion for attorney fees is DENIED. The moving papers do not identify any amount of fees sought, nor provide any evidence as to the time incurred, or how any claimed time incurred was reasonable or necessary. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 49 [party seeking attorney fees has the burden of proof as to the reasonableness and necessity of same]; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1320 [party seeking attorney fees "bear[s] the burden of establishing entitlement to an award and <u>documenting</u> the appropriate hours expended and hourly rates ... [t]he <u>evidence</u> should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended;" emphasis added, internal citation omitted].) The court observes that moving party's counsel has filed two previous fee motions, which also suffered from evidentiary deficiencies. (ROA 56, 58, 59 [first fee motion, denied without prejudice 11-10-26]; ROA 64, 66 [second fee motion, withdrawn by moving party].) The court declines to consider plaintiff's "Notice of Errata" (ROA 98) addressing this issue, which was not filed until 8-3-26, after defendant had filed an opposition. (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [court's discretion to refuse to consider late-filed papers]; <i>Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [same]; see also <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new evidence presented for the first time on Reply is not considered, unless the opposing party has notice and an opportunity to respond].) Defendant shall give notice of this ruling.
58.	Martinez v. American Honda Motor Co. Inc. 2024-01419984	Plaintiff Eudardo Martinez' Motion for Attorney Fees is GRANTED. Defendant argues that Plaintiff's motion is not timely filed, pursuant to Cal. Rules of Court, Rule 3.1702, subd. (b)(1). Defendant argues that at the latest, Plaintiff had until 5/13/26 to file this motion, consisting of 180 days from the entry of the dismissal of this action on 11/14/25. The court does not have to reach that issue, as the court finds good cause to extend any time to file under Rules of Court, Rule 3.1702(d). ("For good cause, the trial judge may extend the time for filing a motion for attorney's fees in the absence

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		of a stipulation or for a longer period than allowed by stipulation.” Rules of Court, Rule 3.1702(d); “Rule 3.1702(d) is ‘remedial’ and is to be given a liberal, rather than strict interpretation. [Citation.]” (<i>Lewow v. Surfside III Condominium Owners Assn., Inc.</i> (2012) 203 Cal. App. 4th 128, 135.) Defendant General Motors, LLC shall pay \$18,453.75 in reasonable attorney fees. (See Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Jacobson Decl. ¶¶ 91-93 [hours spent], 68-90 [description of services performed]; 3-6; 44-46, 48, 50, 52, 54, Ex. 38, 39 [justification for hourly rates sought], and Ex. 40 [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by timekeepers listed in the motion at their requested rates. Plaintiff has adequately established a basis for the reasonableness of the hourly fees requested by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. The court credits the accuracy of Moving Party’s time records. (See <i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 784-785.) However, the court has reviewed the provided timekeeping records and finds that there were several instances where Plaintiff’s request exceeded the hours reasonably necessary to accomplish the tasks listed. The court’s fee award has excised the hours the court finds to have been unreasonably spent. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel’s skill and contingency risk are reflected in the reasonable hourly rates described above. Defendant’s evidentiary objections are OVERRULED. Plaintiff shall give notice of this ruling.
59.	Mikhael v. Physician Partners of	Plaintiff Medhat Mikhael, MD’s Application for a Right to Attach Order and order for issuance of a Writ of Attachment (“Application”) against defendant is DENIED. (Code Civ. Proc. §483.010, subd, (a).)

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	America, LLC 2026-01550474	"Under Code of Civil Procedure section 483.010, a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than \$500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature." (<i>Goldstein v. Barak Construction</i> (2008) 164 Cal.App.4th 845, 852.) Plaintiff must also establish the probable validity of its claim. (<i>Id.</i>) The application must be supported by an affidavit or declaration showing that the applicant, on the facts presented, would be entitled to a judgment on the claim upon which the attachment is based. (<i>Lydig Construction, Inc. v. Martinez Steel Corp.</i> (2015) 234 Cal.App.4th 937, 943-944.) Here, Plaintiff has shown that the application is based upon a claim for money based upon an express contract--namely, the Fifth Cause of Action for Breach of Contract arising out of Plaintiff's exercise of his "put option." (Mikhael Decl., Exh. B.) Plaintiff has shown that the amount of the claim is readily ascertainable by reference to the terms of the contract that involved granting Plaintiff 79,064 Class A Units of TOPCO, which were valued at \$25.30 per share (Exh. B, ¶ 2.2) and that such units would vest and be repurchased by TOPCO either over a 5 year period following the execution of the agreement (¶ 3.1) or the occurrence of a defined event that would trigger acceleration of the vesting. (¶ 3.2.1.) Plaintiff must also make an evidentiary showing of the probable validity of the claim. (Code Civ. Proc. §484.090, subd, (a)(2).) Cal. Code Civ. Proc. §481.190 states, "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." The elements of a claim for breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or excuse from performance of the contract; (3) the defendant's breach; and (4) resulting damages to the plaintiff. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff has failed to establish the probable validity of the contract claim with admissible evidence. Plaintiff asserts termination without cause to trigger accelerated vesting. Section 4.2 describes that Plaintiff must sign the attached Separation Agreement within 60 days lest the accelerated